

shall be heard by the Discovery Referee.

3. By no later than August 31, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc. § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by August 31, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, September 2, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of this order.
6. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
7. The Clerk of Court shall vacate Plaintiff's discovery motions calendared for August 26, September 2, and September 16, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.
8. The Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 2016.040 **in person, by telephone, or by video conference** to discuss the dispute for all eight discovery motions. Counsel shall file and serve a declaration specifying in detail how they have complied with this statutory requirement, including the date, time and duration of the meet and confer efforts no later than September 18, 2026.
9. No appearance is required at the hearing on August 26, 2026.

7. 1:30 PM CASE NUMBER: C24-00285

CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.

COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET NUMBER TWO - NOS. 44-98
RE: IMPORT MOTORS, INC.

FILED BY: BELTRAN DIAZ, PABLO ROBERTO

TENTATIVE RULING:

See Line 6.

8. 1:30 PM CASE NUMBER: C24-00285
CASE NAME: PABLO BELTRAN DIAZ VS. IMPORT MOTORS, INC.
COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET NUMBER TWO - NOS. 43-97
RE: NOELLE ELIZABETH LUCAS
FILED BY: BELTRAN DIAZ, PABLO ROBERTO
TENTATIVE RULING:

See Line 6.

9. 1:30 PM CASE NUMBER: MSC21-01963
CASE NAME: KNIGHT VS HONDA
COMPEL DEFENDANT AMERICAN HONDA MOTOR CO., INC.'S FURTHER RESPONSES TO REQUEST
FOR PRODUCTION OF DOCUMENTS, SET TWO
FILED BY: KNIGHT, MELANIE
TENTATIVE RULING:

Summary

Plaintiff Melanie Knight's discovery motion was continued from August 19, 2026 due to the unavailability of Hon. Benjamin T. Reyes II and the disqualification of Judge Charles Steve Treat (Ret.) The tentative ruling published for August 19, 2026 is set forth below.

Summary

Plaintiff moves to compel production of extensive categories of documents concerning safety devices that defendant Honda incorporated into its Vezel model, which was marketed and sold only in Japan. The motion is **denied**.

Background

This is a personal injury case, alleging that plaintiff was hit by a Honda while jaywalking. The claims against Honda center on the allegation that Honda's vehicle lacked safety features, such as forward collision-avoidance devices. Plaintiff has adduced in discovery that at the time the vehicle was made and sold, Honda incorporated such safety devices in a similar model it was selling in Japan. Plaintiff has also received discovery about the safety technology used on other Honda models.

The substance of this motion was already raised and ruled on by Judge Mockler in a prior motion to compel, which was denied. Plaintiff argues that it now has "new information", but it offers no convincing argument why that information overcomes the grounds for Judge Mockler's denial. Moreover, plaintiff waited over a year to file this motion.

In any event, with or without Judge Mockler's prior ruling, the Court views the present discovery sought as too burdensome and too far afield to warrant compelling discovery. Plaintiff wants to be able to prove at trial that Honda was capable of incorporating the disputed safety equipment in the model at issue, and that it understood the safety value of doing so. The point is a fair one for trial, but plaintiff has already got ample discovery responses (including the very deposition testimony it now relies on) to seek to carry that point at trial. The bulky details of the incorporation into the Japanese model vehicle will add little if any further probative value.